

No. 03-17-00812-CV

IN THE THIRD COURT OF APPEALS
AUSTIN, TEXAS

FILED IN
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AUSTIN, TEXAS

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AHMAD ZAATARI, MARWA ZAATARI, JENNIFER GIBSTON HEBERT, JENNIFER HEBERT, JOSEPH “MIKE” HEBERT, LINDSAY REDWINE, RAS REDWINE IV, and
TIM KLITCH, Plaintiffs – Appellants and Cross-Appellees, and

STATE OF TEXAS, Intervenor – Appellant and Cross Appellee,

v.

CITY OF AUSTIN, TEXAS AND STEVE ADLER, MAYOR OF THE CITY OF
AUSTIN, Defendants – Appellees and Cross-Appellants

Appeal from Cause No. D-1-GN-16-002620
53rd Judicial District Court of Travis County, Texas

**SECOND JOINT MOTION TO EXTEND TIME TO FILE OPENING
BRIEFS; MOTION TO MODIFY BRIEFING SCHEDULE**

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TO THE HONORABLE THIRD COURT OF APPEALS:

1. As currently scheduled, each set of parties in this appeal must file an opening brief on or before March 22, 2018. This includes:

- The opening brief on appeal for Plaintiffs-Appellants / Cross-Appellees Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Herbert, Joseph “Mike” Herbert, Lindsay Redwine, Ras Redwine VI, and Tim Klitch (hereinafter, “Private Appellants”);
- The opening brief on cross-appeal for Intervenor Cross-Appellant the State of Texas (hereinafter, “State of Texas”);
- The opening brief on cross-appeal for Defendants-Appellees / Cross-Appellants City of Austin, Texas and Steve Adler, Mayor of the City of Austin (hereinafter, “City”).

2. Pursuant to Texas Rules of Appellate Procedure 38.6(d) and 10.5(b), Private Appellants, the State of Texas, and the City seek to modify the briefing schedule as follows:

- Private Appellants and the State of Texas will file opening briefs on or before March 29, 2018, not to exceed 15,000 words each;
- The City’s opening cross-appeal brief and response brief will be due April 30, 2018, not to exceed 20,000 words;

- Private Appellants and the State of Texas will file reply briefs on or before May 30, 2018, not to exceed 12,000 words each;
- The City will file a reply brief on cross-appeal issues on or before June 13, 2018, not to exceed 6,000 words.

3. The extension and modification are sought to accommodate the pending completion of the record on appeal and to propose a more efficient briefing of the issues. Presently, the City has requested a supplement to the Clerk's Record that has yet to be filed with the Third Court of Appeals, thus inhibiting completion of its opening brief. In addition, similar jurisdictional issues will be discussed in the appeal of Private Appellants and the cross-appeal of the State of Texas (concerning the trial court's grant of the City's no-evidence motion for summary judgment), as well as in the City's cross-appeal (concerning the trial court's denial of the City's plea to the jurisdiction), and the parties believe that the proposed briefing schedule will accommodate a more efficient presentation of the issues.

4. This extension is sought in the interest of justice, not for delay, and no party will be prejudiced if this second request for an extension, and request for modification of the briefing schedule, is granted.

5. All parties agree to the requested extension and modification of the briefing schedule.

PRAYER

For the foregoing reasons, Private Appellants, the State of Texas, and the City jointly request a modification of the briefing schedule, as described above.

March 19, 2018

Respectfully submitted,

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Counsel for Private Appellants

CERTIFICATE OF COMPLIANCE

I certify that the Private Appellants, the State of Texas, and the City have jointly agreed to seek the relief requested by this motion.

\s\ Michael Siegel
MICHAEL SIEGEL

CERTIFICATE OF SERVICE

I certify that I served a copy of this motion on counsel of record electronically, in accordance with the Court's rules on electronic filing, on March 19, 2018, as listed below:

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